

If Mr. Del Signore (or attorney on his behalf) fails to appear on the OSC, the Court will issue a warrant for Mr. Del Signore's arrest to bring him before the Court to answer the OSC. Code Civ. Proc. § 1212. The Court shall endorse on the warrant a direction that the person charged may be released by posting a specified bail. See *id.* at § 1213.

Disposition

The Court finds and rules as follows:

1. Parties and Mr. Del Signore to Appear on the OSC.

2. 10:00 AM CASE NUMBER: MSC19-02043

CASE NAME: GARAVENTA VS AZARI

***HEARING ON MOTION IN RE: ORDER AUTHORIZING RECEIVER TO SATISFY THE REPAIR OBLIGATION**

FILED BY: DONELL, STEPHEN

TENTATIVE RULING:

Before the Court is a Receiver Stephen J. Donell's motion for order authorizing the receiver to satisfy repair obligation.

Background

The action arises out of business disputes between plaintiff Silvio Garaventa and defendant Mehrzad Azari. The operative first amended complaint filed November 4, 2019 alleges that Mr. Garaventa and Mr. Azari each owned 50 percent of defendant Pine Hollow Enterprises, a corporation, and they were also each a director of Pine Hollow. (FAC ¶¶ 1, 2.) At that time, Mr. Garaventa alleges he and Mr. Azari also each held 50 percent membership interests in the limited liability company defendant AGL Enterprises, LLC. (FAC ¶¶ 1, 2, 4.)

When the case began, Pine Hollow operated a gas station, convenience store and car wash on property owned by AGL. (FAC ¶ 9.) Pine Hollow leased the property from AGL. (FAC ¶ 9.) Pine Hollow had an agreement with CMA, an entity owned by Mr. Azari, to manage Pine Hollow. (FAC ¶¶ 4, 13.)

Relevant to Pine Hollow, Mr. Garaventa's FAC alleges causes of action against Mr. Azari for breach of fiduciary duty under California Corporations Code section 309 (1st C/A), and against Mr. Azari and nominally Pine Hollow for judicial dissolution of Pine Hollow under Corporations Code section 1800 (5th C/A), appointment of a receiver (6th C/A), and declaratory relief (7th C/A). Among other claims, Mr. Garaventa challenges the CMA management agreement and alleges other acts and omissions of Mr. Azari in managing Pine Hollow and Mr. Azari's alleged refusal to provide Mr. Garaventa information regarding the business operations and financial condition of Pine Hollow.

A. Mr. Azari's Corporations Code Section 2000 Election and Pine Hollow Valuation

In response to Mr. Garaventa's cause of action for involuntary dissolution of Pine Hollow pursuant to Corporations Code section 1800, Mr. Azari notified the Court and counsel of his election to exercise his right to purchase Garaventa's 50% ownership interest in AGL under the AGL operating agreement and in Pine Hollow pursuant to Corporations Code section 2000(a). The disputes over AGL and its

valuation were submitted to arbitration pursuant to a motion by Mr. Azari, and the action was stayed as to Pine Hollow. (Order filed 7/16/2020.)

The Court also granted Mr. Garaventa's motion to appoint appraisers in part to the extent it sought the appointment of appraisers to value Pine Hollow in connection with Mr. Azari's Corporations Code section 2000 election. (7/16/2020 Order.) The Court subsequently issued its Order Pursuant to Corporations Code Section 2000 filed August 18, 2020 based on Mr. Azari's election to purchase Mr. Garaventa's 50% ownership interest in Pine Hollow. (8/18/2020 Order.)

On May 17, 2022, after several prior hearings addressing the status of the appraisals of Pine Hollow, the Court stayed the remainder of the action, in particular regarding the valuation of Pine Hollow, pending the completion of the AGL arbitration and the valuation of AGL through that proceeding. (5/17/2022 3rd Interim Order After Hearing.) On December 12, 2024, the Court granted a motion to bifurcate the Pine Hollow valuation from other issues in the case. (12/12/2024 Order.)

Mr. Azari attempted to withdraw his buy-out election under Corporations Code section 2000 in his Status Report re: Section 2000 Special Proceeding filed February 13, 2025. At the Court's request, the parties provided supplemental briefing on whether Mr. Azari had the right to withdraw the election and on the appraisals of Pine Hollow prepared by the three appraisers. At a March 28, 2025 hearing, the Court rejected Mr. Azari's attempt to withdraw his buy-out election and took the matter under submission after the parties' argument on the valuation issue. The Court issued its Order After Hearing and Decree Under Corporations Code § 2000 ("Section 2000 Decree") which was filed May 2, 2025. (5/2/2025 Section 2000 Decree.) Section 2000 Decree determined the valuation of Pine Hollow and set a 60-day deadline for Mr. Azari to complete the buy-out of Mr. Garaventa's ownership pursuant to Corporations Code section 2000(c). (5/2/2025 Section 2000 Decree.)

B. Court-Ordered Wind Up of Pine Hollow

Mr. Azari failed to complete the buy-out of Garaventa's interest in Pine Hollow by the Court-ordered deadline, resulting in the Court-ordered wind up of Pine Hollow pursuant to Corporations Code section 2000. (See Corp. Code § 2000(c) ["The court shall enter a decree, which shall provide in the alternative for winding up and dissolution of the corporation unless payment is made for the shares within the time specified by the decree."].) Mr. Azari made an *ex parte* application for appointment of a receiver over Pine Hollow on June 4, 2025. After hearings on June 4, 2025 and June 13, 2025, Mr. Azari's *ex parte* application was granted, and Stephen Donell was appointed as Receiver "with respect to, and to take possession, custody and control of, the going concern businesses operated by Pine Hollow located at 1024 Alberta Way, Concord, CA." (6/13/2025 Order.)

On August 28, 2025, the Receiver filed a motion for an order authorizing him to wind up the business of Pine Hollow. The Receiver subsequently filed an amended wind up motion on September 16, 2025. On October 28, 2025, the parties and the Receiver filed their Stipulation to Order Authorizing Receiver to Wind Up Pine Hollow Enterprises, Inc. ("Wind Up Stipulation") which was approved by the Court's Order of the same date.

Under the Wind Up Stipulation, the Receiver "is authorized to wind up Pine Hollow's business on such timeline as the Receiver in the exercise of his business judgment" deems appropriate and generally to take the actions the Receiver determines in his business judgment are reasonably necessary to wind

up Pine Hollow, including giving notices to the gasoline product supplier and convenience store franchisor. The Court signed a concurrent order granting the *ex parte* application for approval of the Wind Up Stipulation and confirming the hearing on the Receiver's wind up motion would remain on calendar. (10/28/2025 Order.)

On November 7, 2025, the Receiver filed a second amended wind up motion to reflect the developments in the case and the outstanding issues related to the wind up of Pine Hollow in light of the Wind Up Stipulation and Order. The Court issued an order after hearing on the second amended wind up motion, granting the Receiver's requests to pay an outstanding CMA invoice for approximately \$3,500 and for authority to pay real property taxes which Pine Hollow was obligated to pay under its lease with AGL by offsetting the amount of the taxes against the amount owed by AGL to Pine Hollow under a promissory note. (1/5/2026 OAH.) The Receiver's second amended motion also raised the issue of the repairs of the storage tanks and other related equipment which the Receiver concluded Pine Hollow was obligated to repair under the lease. The Court's order after hearing authorized the Receiver to solicit bids for the repairs, with any proposal to make the repairs to be the subject of a subsequent noticed motion. (1/5/2026 OAH.)

The Receiver's current motion addresses Pine Hollow's unperformed environmental repair obligations under its lease with AGL, as explained further below.

Legal Background and Analysis of Issues in Dispute

" 'A receiver is an agent and officer of the court, and is under the control and supervision of the court. [Citations omitted.]' " (*Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership* (2017) 8 Cal.App.5th 910, 922.) (*See also City of Sierra Madre v. SunTrust Mortgage, Inc.* (2019) 32 Cal.App.5th 648, 656 ["A receiver is an officer of the court and is subject to the court's continuing control"]; Code Civ. Proc. § 568; Cal. R. Ct., Rule 3.1179.) The property subject to the receivership is under the Court's control and "continuous supervision." (*City of Santa Monica v. Gonzalez* (2008) 43 Cal.4th 905, 930.) The Receiver's powers are controlled by statute, the order appointing the Receiver, and subsequent orders of the Court. (*Id.* at 930.) Based on the Court's supervision and control, a receiver may request instructions from the Court regarding the disposition of property and other issues arising in the receivership administration. (*See, generally, United Sav. & Loan Assn. v. Hoffman* (1973) 30 Cal.App.3d 306, 311 [addressing receiver's request for instructions as to disposition of surplus funds].) The Court has wide discretion in approving a receiver's proposed actions in the absence of "evidence of fraud, unfairness or oppression." (*City of Santa Monica v. Gonzalez, supra*, 43 Cal.4th at 931.)

Requests for Judicial Notice

Each party has requested judicial notice of Court filings made in this case, which requests are unopposed and **GRANTED**, subject to the applicable limitations on the scope of judicial notice. (Evid. Code §§ 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

Notes on Receiver's Declaration

The Court notes there are typographical errors in paragraph 3 of the Donell Declaration and the Receiver's memorandum regarding the dates of the Pine Hollow lease and first amendment to lease with AGL; nevertheless, the lease documents themselves are attached as Exhibit B to the Donell Declaration and provide the correct dates. The Court also notes that the March 17, 2026 letter to the Receiver expressing Mr. Garaventa's position that Pine Hollow has no obligation to make repairs, referred to as Exhibit F to the Donell Declaration, is not attached to the Court-filed version of the declaration. (Donell Decl. ¶ 8.) The omission is not material, since Mr. Garaventa has filed an opposition to the motion setting forth his position in detail.

Analysis

A. The Receiver's Position and Request for Authority to Satisfy Repair Obligation

Pine Hollow is no longer operating and has vacated the gas station property as part of the wind up of its affairs. The Receiver has analyzed the Pine Hollow lease with AGL and concludes that Pine Hollow is obligated under its lease with AGL to make repairs to maintain its storage tanks and related equipment in compliance with the environmental laws. The lease recognized Pine Hollow would install and use underground gasoline storage tanks, and made Pine Hollow "responsible for compliance with all applicable requirements and Environmental Laws," which are defined to include "any federal, state, or local environmental, health, or safety-related laws, regulations, standards, court decisions, ordinances, rules, codes, orders, decrees, directives, guidelines, permits, or permit conditions, currently existing and as amended, enacted, issued, or adopted in the future that are or become applicable to Tenant or the Premises." (Donell Decl. ¶ 3 and Exh. B [Lease Section 11].)

The Receiver has been advised by Mr. Azari that during Pine Hollow's operation and before the receivership commenced, leaks from the underground equipment were detected by sensors and repairs were needed on the underground equipment. (Donell Decl. ¶¶ 5, 6, and 8 and Exh. D.) The Receiver seeks to satisfy Pine Hollow's lease obligation by offsetting the cost of the repairs, based on an April 1, 2026 bid from CGRS Compliance Services, against the outstanding balance of a \$1 million promissory note executed by AGL in favor of Pine Hollow. (Donell Decl. ¶¶ 4, 7 and Exh. C.) The motion states the current balance of the AGL note is approximately \$892,000 and the costs of the repairs, including permits, are approximately \$597,000. (Donell Decl. ¶ 6 and Exh. E.) (The Donell Declaration attaches a copy of the AGL note but does not state the current outstanding balance. See Donell Decl. ¶ 4 and Exh. C.)

The premises owned by AGL and formerly leased by Pine Hollow are now leased to a third party, Delong Liu/Delong Oil, Inc. (Donell Decl. ¶ 7; Bowles Opp. Decl. ¶.) There appears to be no dispute that the new tenant has accepted the premises subject to the lease with AGL in an "as is" condition. (Donell Decl. ¶ 8; Bowles Decl. ¶ 5.) Neither the Receiver nor Pine Hollow are in possession of the premises to perform the physical repairs. (Donell Decl. ¶¶ 7, 8.)

The Receiver has solicited bids over a period of months for contractors willing to perform the necessary repairs. (Donell Decl. ¶ 6 and Exh. E; Supp. Donell Decl. ¶¶ 3, 4.) The only contractor willing to bid on the project is CGRS, whose bid the Receiver presents with this motion. (Donell Decl. ¶ 6 and Exh. E; Supp. Donell Decl. ¶¶ 3, 4.) The CGRS bid sets forth the company's proposed scope of work to

bring the property into compliance with applicable environmental requirements. (Donell Decl. Exh. E.)

B. Mr. Garaventa's Opposition to the Motion

Mr. Garaventa opposes the Receiver's request because he contends that the new "as is" lease of the property to Delong Oil means that neither AGL nor Pine Hollow have any environmental compliance liability. Mr. Garaventa argues that since the new tenant has accepted the premises in an "as is" condition under a long-term, 20-year lease, AGL has no obligation to make any repairs, so no offset for repair costs is appropriate, nor should Pine Hollow have any obligation to pay for the repairs. (Opp. p. 4, ll. 16-21.)

As to Delong Oil's acceptance of the premises "as is," Mr. Garaventa points to other provisions of the new Delong Oil lease that he contends do not require the landlord to make any repairs to the property, and he contends the documents produced, which are not before the Court, also show AGL is not obligated to compensate the new tenant while the property is being repaired. (Bowles Decl. ¶¶ 5, 6.) Mr. Garaventa also points to an agreement between Delong Oil and Chevron apparently granting a purchase option and right of first refusal to Chevron, presumably of Delong Oil's interest in the lease with AGL. (Bowles Decl. ¶ 7.)

Mr. Garaventa contends the only evidence of environmental violations at the property are an "undated screenshot" Mr. Azari sent the Receiver showing violations and the bid from CGRS for repairs to bring the property into environmental compliance. (Opp. p. 4, ll. 11-13.) (See Garaventa RJN Exh. 1 [11/7/2025 Donell Decl. ISO 2nd Am. Wind Up Mot. ¶ 11; Donell Decl. ¶ 6 and Exh. E.]) Mr. Bowles declares that copies of three permits for operating underground storage tanks were produced in response to Mr. Garaventa's subpoena to Mr. Liu of Delong Oil. Each of the "Underground Storage Tank Permit to Operate" appears to have been issued to Pine Hollow by Contra Costa Health Hazardous Materials Program Certified Unified Program Agency and on their face indicate they are valid from July 1, 2025 through June 30, 2026. (Bowles Decl. ¶ 15 and Exh. D.) Mr. Garaventa also argues that there is no evidence that either Pine Hollow or AGL as the property owner have been cited for any environmental violations.

Much of the rest of Mr. Garaventa's opposition is devoted to his claimed need for more discovery which was the subject of a prior ruling by the Court. (5/15/2026 Order.) The Court's Odyssey electronic files for the case reflect that Mr. Garaventa has a subpoena to Mr. Liu that is subject to a pending motion to compel which is set for a continued hearing on July 27, 2026. Mr. Garaventa contends that Mr. Azari's deposition was not concluded and completed and that he has the right to a continued deposition session with Mr. Azari, and that all of the additional discovery will be relevant to determination of this motion. (Bowles Decl. ¶¶ 10-14, 16, 17.)

C. Mr. Azari's Position

Mr. Azari, as both the other 50% owner of Pine Hollow and now 100% owner of AGL, the former landlord, does not oppose the relief sought in the motion. He and AGL have expressed their willingness to accept the Receiver's proposed offset to the AGL note obligation "[t]o resolve Pine Hollow's obligation to perform pip remediation with minimal cost and effort." (Azari Resp. p. 2, ll. 11-13.) He contests Mr. Garaventa's position that the offset and therefore reduction in the amount owed by AGL on the note is a windfall to AGL because the offset resolves "Pine Hollow's documented

obligation to perform the repairs but not the obligation under federal, state, and local regulations to have the site repaired. AGL will have to assume the responsibility at a *higher* price than the offset, because the bid solicited by the Receiver excluded some categories of remediation work and fails to account for AGL's overhead costs or the impact on the tenant," and "AGL will absorb the increase in costs until the work is performed." (Azari Resp. p. 2, ll. 14-23.) Nevertheless, Mr. Azari states "AGL is willing to suffer these financial consequences as a compromise to facilitate Pine Hollow's winding-up." (Azari Resp. p. 2, ll. 24-25.)

Mr. Azari does not dispute that he may be subject to a continued deposition session, but he argues that none of the discovery Mr. Garaventa contends he needs will have any impact on the issues in the motion. He points to the Court's order after hearing on the Receiver's prior motion to wind up the estate that accepted the Receiver's position that the Pine Hollow lease obligated Pine Hollow to maintain the installation and use of the underground storage tanks in compliance with the applicable environmental laws and that Pine Hollow was contractually obligated to make repairs to comply with that obligation if the tanks were not in compliance. (1/5/2026 OAH.)

D. The Court's Analysis

Notably, Mr. Garaventa does not address or contest the Receiver's interpretation of the terms of the Pine Hollow lease. Mr. Garaventa does not assert that Pine Hollow was not obligated under its lease with AGL to maintain its installation and use of the underground storage tanks or other related equipment in compliance with the applicable environmental laws. (Donell Decl. Exh. B, Section 11.) Mr. Garaventa does not dispute that the lease, including the indemnity and other provisions, make Pine Hollow liable to AGL for any breach of those obligations that occurred during the term of the lease, even after the lease is terminated. (Donell Decl. Exh. B [Sections 7, 8 and 11].) The Court previously concluded in its January 5, 2026 order after hearing that Pine Hollow has those obligations under the lease.

The contested issue on the motion therefore is not the existence of Pine Hollow's obligations under the lease. What is contested is the extent to which noncompliance exists, what repairs would be needed to meet the lease's compliance standard, and what the appropriate cost for those repairs is.

Mr. Garaventa argues that Pine Hollow under Mr. Azari's management had seven years to perform the repairs to the sumps and related equipment. He presents evidence that Pine Hollow had funds reserved for that purpose, but that Mr. Azari failed to make the repairs. (Opp. p. 5, ll. 8-21.) Mr. Garaventa acknowledges that in 2018, Pine Hollow was to reserve \$800,000 to upgrade the property, including \$125,000 to address repairs to "fittings at the fuel/turbine sumps." (Opp. p. 5, ll. 10-11.) The corporate records show that Pine Hollow recognized its obligation to make repairs to the premises beginning in 2018, and that funds were reserved by Pine Hollow in 2019 for that purpose. (Garaventa Decl. ¶¶ 3-6 and Exhs. A-C.) These are acknowledgements, consistent with the Receiver's conclusion, that Pine Hollow as lessee was obligated to make repairs to the sumps and that repairs to the sumps were deemed necessary at that time before litigation commenced.

Pine Hollow itself got a bid from CGRS to perform repairs, and Pine Hollow had CGRS make certain repairs at the property but not the "phase 4" repairs involving the piping and sumps because of the management disputes between the owners. (Garaventa RJN Exh. 1 [11/7/2025 Donell Decl. ¶ 10];

Donell Decl. Exh. D [Azari email].) The fact that Mr. Azari failed to make the repairs in 2018 when the issue first arose, or in 2019 or 2020 when funds were reserved for that purpose, or after obtaining the CGRS 2020 bid, and that there has been a substantial increase in cost of the repairs with the passage of time and failure to correct the problems with the sumps, all may be evidence to support Mr. Garaventa's claims against Mr. Azari for mismanagement of Pine Hollow and breach of Mr. Azari's fiduciary duties to Pine Hollow and Mr. Garaventa as the non-managing shareholder. It may be evidence that Mr. Azari's acts and omissions in the management of Pine Hollow have wrongfully diminished the value of Mr. Garaventa's in Pine Hollow. The evidence does not mean that Pine Hollow did not breach its obligation under the lease to maintain compliance with the environmental laws and therefore that Pine Hollow does not have an outstanding obligation to satisfy under the lease.

Regardless of the terms of AGL's lease with Delong Oil, the new Delong Oil lease does not mean that Pine Hollow did not have obligations to AGL under Pine Hollow's lease with AGL that were breached and that must be satisfied in some manner in order for the Receiver to wind up Pine Hollow and the receivership estate. Further, the fact that the new lessee was willing to accept the premises in their current condition does not mean necessarily that the lack of repairs for problems with the underground tanks did not result in damages to AGL's interest in the property. AGL bargained for Pine Hollow's installation and use of the storage tanks in compliance with environmental laws in the Pine Hollow lease; the evidence is essentially undisputed AGL did not obtain what it negotiated for and that Pine Hollow breached its lease covenant regarding the condition of the tanks and piping.

The Receiver has sufficiently shown his efforts to solicit bids from the limited number of certified companies specializing in this type of work on gas station properties. The bid includes more details regarding the nature and scope of work that CGRS has concluded needs to be done to bring the tanks into compliance, not just "address the fittings at the fuel/turbine sumps." (Supp. Donell Decl. ¶¶ 3, 4; Donell Decl. Exh. E.)

Mr. Garaventa argues the screenshot showing the violation included in the Receiver's prior declaration is undated and is not evidence of a violation of the environmental laws. But the totality of the evidence shows that since 2018, when Pine Hollow recognized and provided a reserve for repairs to the sumps, Pine Hollow has done nothing to make those sump repairs, except in 2020 Pine Hollow obtained a bid for the repairs from the same company which made the current (and only) bid for the work.

The extract from the CERS website Mr. Azari provided the Receiver shows a violation which, though identified as in the category of "administrative," includes in the "violation comments" a directive for "corrective action" and for "immediate[] contact" to be made with a certified contractor to make repairs to the underground storage tank, consistent with the work Pine Hollow conceded was needed in 2018 and with the work described in the CGRS bid:

Violation Program Element: UST Program

Violation Category: Administration/Documentation

Violation Title: Double-Walled Tank Monitoring - After January 1, 1984 and Before July 1, 2004 (USEPATCR 9d) (USEPA Priority)

Violation Description: Failure to continuously monitor the interstitial space of a double-walled tank with an audible and visual alarm system.

Violation Comments: OBSERVATION: Repeated alarm on L4, L5, L15, L17, L18, L24, and L25 showed loss of brine in the 87, 91, Diesel in both STP sump and Fill sump, which indicating a leak in the secondary containment. Secondary containment shall be impervious to the liquid and vapor of the substance contained and constructed to prevent structural weakening as a result of contact with any hazardous substances released from the primary containment. CORRECTIVE ACTION: Immediately contact a properly licensed, trained, and certified contractor to make repairs to the UST system under permit and inspection of the CUPA.

(Garaventa RJN Exh. 1 [11/7/2025 Donell Decl. ¶ 11].) (*See also* 11/7/2025 Donell Decl. ¶ 10 [Azari advised the Receiver the property was "currently in violation" of the state and county guidelines].)

The Donell Declaration cited by Mr. Garaventa from November 2025 shows Pine Hollow's 2020 estimate for work and that by November 2025, the estimate for the work was \$455,000. (Garaventa RJN. Exh. 1 [11/7/2025 Donell Decl. ¶ 10].) The fact that the estimate continues to go up, and that CGRS told the Receiver that further delay would increase the cost, is consistent with the significant increase in the cost estimate between 2020 and 2025.

The CGRS bid issued to the Receiver is itself evidence of the property's violation and need for repairs to meet environmental compliance, an obligation to make repairs acknowledged by Pine Hollow that have been required since 2018. There is no evidence that the piping/sump repairs were made after 2018, and to the contrary, Mr. Garaventa complains that they were not made while Mr. Azari was in charge.

The Court also finds the mechanism of an offset against the AGL note and amounts owed by AGL to Pine Hollow is a reasonable way to satisfy any obligations owed by Pine Hollow to AGL under its lease. It is an expedient way to resolve AGL's claim against Pine Hollow for breach of the lease and will help advance the goal of winding up Pine Hollow and closing the receivership estate. The Court is sensitive that extending the duration of the receivership unnecessarily is detrimental to the parties in light of ongoing receivership administrative expenses that will continue until Pine Hollow is wound up and the case closed.

Conclusion and Ruling

Based on the record before the Court and for the reasons stated above, the Receiver's motion to satisfy Pine Hollow's repair obligation under Section of the Pine Hollow lease with AGL by crediting the sum of \$597,479 to the outstanding balance of the promissory note executed by AGL in favor of Pine Hollow is **GRANTED**, and in connection therewith, the Receiver is directed to (a) confirm in writing with AGL that the offset shall be in full satisfaction of any and all repair obligations of Pine Hollow under its lease with AGL or otherwise, and (b) AGL shall fully release any claim or liability of Pine Hollow for any such repair obligations in exchange for the \$597,479 offset/credit to AGL's liability under the note to Pine Hollow.

3. 10:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING COMPLIANCE WITH SUBPOENAS FOR PROD OF DOCS**
FILED BY: GARAVENTA, SILVIO
TENTATIVE RULING:

Pursuant to the stipulation of the parties, this matter was continued to July 27, 2026, 9:00 am, in Department 34, by the Court's Order entered June 10, 2026.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-02535
CASE NAME: JNBUD HADU VS. CESAR MATTOS
***HEARING ON MOTION IN RE: FOR COMPLETE CONSOLIDATION OF CASE NO. P23-01784 WITH CASE NO. C22-02535**
FILED BY: HADU, JNBUD DAWOD
TENTATIVE RULING:

Before the Court is a motion by Plaintiff to fully consolidate a related probate case with this civil action. For the reasons set forth, the motion is **DENIED**.

Background

Plaintiff Jnbud Dawod Hadu ("Hadu" or "Plaintiff") alleges she is the successor in interest of her sister Sabiha Campbell ("Campbell" or "Decedent") who died on July 27, 2022. (Third Amended Complaint ("3AC") ¶ 2.) Plaintiff alleges she is "the intestate heir [of Decedent] whose interest is affected" by the action, "but for" the defendants' allegedly unlawful conduct. (3AC ¶ 3 and Exh. A [Kozicki Decl. ¶¶ 3-7 [on information and belief asserting Decedent died "leaving no will" and Decedent's estate would be awarded to Hadu].)

The general factual background alleged in the 3AC is that Campbell moved to California in approximately 1976 and married John Campbell approximately two years later. (3AC ¶ 4.) John Campbell died in February 2008. (3AC ¶ 5.) Decedent created the Sabiha Campbell 2008 Revocable Trust in May 2008 (the "Trust") designating defendant Cesar Mattos and Christine Mulder, formerly a defendant and now dismissed, as sole beneficiaries of the residue of Campbell's estate. (3AC ¶ 6 and Exh. B; 9/8/2025 Req. for Dism.) Plaintiff alleges In December 2009, Campbell executed a "purported" First Amendment to Trust removing Mulder as a beneficiary. (3AC ¶ 6 and Exh. C.) Defendant Mattos was a handyman employed by Campbell's husband prior to his death. (3AC ¶ 39.)

On or about August 30, 2022, Hadu was notified of Campbell's death when she received a Notification by Trustee of that date, a copy of which is attached to the 3AC as Exhibit D. (3AC ¶¶ 9, 36 and Exh. D.) She filed her initial complaint in this action on November 29, 2022. In her operative 3AC and after dismissal of Mulder, she alleges various violations of the Elder Abuse and Dependent Adult Civil